

		procedures of unlawful detainer. (<i>Lindsey v. Normet, supra</i>, 405 U.S. at pp. 64–66 [summary unlawful detainer procedures are constitutionally acceptable when they are applied to straightforward issues of possession and incidental damages]. By failing to determine whether and how Moore's rights and needs might be balanced with Martin-Bragg's legitimate interests in the matter's prompt resolution, and instead proceeding to try the complex issue of the parties' rights to title of the property within the confines of the summary procedures that apply only to straightforward determination rights to possession, the court abused its discretion.” (<i>Martin-Bragg v. Moore</i> (2013) 219 Cal.App.4th 367, 389-391.) As the sole issue of dispute in this unlawful detainer proceeding is the complicated issue of title, whether the sale of the property at foreclosure was duly perfected, which is at issue in the unlimited court proceeding, the Court will temporarily stay the unlawful detainer proceedings. The Court will set a hearing for a status on the unlimited case on August 28, 2026, at 8:30 AM
7	30-2026-01574512 Camden Jamboree Development, L.P. vs. Barcag	The Court has read and considered Sinan Barcag’s Ex Parte to Set Aside Default Judgment and Stay of Execution of Judgment (ROA 20), Plaintiff’s Opposition (ROA 31), and 7/17/2026 Minute Order (ROA 25). The Court takes Judicial Notice of the 26V001083, Proof of Service of Summons (ROA 8), Proof of Service of Summons & Complaint – Unnamed Occupants (ROA 10) and the Complaint (ROA 2). According to the Domestic Violence Restraining Order 26V001083, the Defendant and named Tenant on the lease, Sinan Barcag, is the husband and father of Sinan Barcag’s three children. The signed rental agreement shows occupancy starting on 9/25/2025. Sinan’s statement in her moving papers is that for two months prior to the granting of the current restraining order signed by Judge Tiffancy Poncy on 7/10/2026, she was required to be out of the home per court order. Two months prior to 7/10/2026 would be on or about 5/10/2026. The Notice to Pay Rent or Quit was served on 5/19/2026 via posting; the Proof of Service of Summons & Complaint – Unnamed Occupants (ROA 10) shows that this was served via substitute service on June 5, 2026, posted on the property, and mailed the same date. California Code of Civil Procedure 415.46(c)(1) states “When serving the summons and complaint upon a tenant and subtenant, if any, the marshal, sheriff, or registered process server shall make a reasonably diligent effort to ascertain whether there are other adult occupants of the premises who are not named in the summons and complaint by inquiring of the person or persons who are being personally served, or any person of suitable age and discretion who appears to reside upon the premises, whether there are other occupants of the premises.” No statement is made by the registered process server that this mandatory inquiry was made. The Court finds that given the totality of the circumstances, including the fact that Sinan Barcag has been found by a judicial officer on a permanent restraining order to be a victim of domestic violence with the Defendant, her husband as the perpetrator, and her three children listed as protected people on that restraining order, that at all times of possible notice or service Sinan

		was prevented by a court order from being at the property which service was effectuated that it would be an extreme hardship for Sinan Barcag and her children to immediately vacate the premises under California Civil Code of Procedure section 918. The Court orders the Writ of Possession STAYED until 11:59 PM on August 11, 2026. The Court Clerk is to notify the Orange County Sheriff's Department that the Writ of Possession is STAYED until 11:59 PM on August 11, 2026. The Orange County Sheriff's Department, on August 12, 2026, may proceed with the lockout of any and all occupants of the premises. The Court Clerk is to provide notice of the Court's ruling.